

Pyare Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 July 2022 · WRIT - C No. - 12883 of 2022 · **Writ disposed; 6.5 objection to be decided; coercive action stayed eight weeks.**

HEADNOTE

A writ to quash an electricity demand of Rs 2,47,571 and restrain coercive recovery was disposed without any opinion on merits. The consumer was given liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if filed, it is to be decided in accordance with law within the next four weeks after hearing, with no coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Pyare Lal petitioned the Allahabad High Court to quash a demand notice dated 22 December 2021 for Rs 2,47,571 issued by the Executive Engineer, Madhyanchal Vidyut Vitran Nigam Limited, Baheri, District Bareilly, and to restrain coercive recovery of those electricity dues. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to disputed electricity demand

HOLDING

Without expressing any opinion on merits, a writ challenging an electricity demand and coercive recovery is disposed by granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the electricity demand was disposed without merits by relegating the consumer to a clause 6.5 objection before the licensee, with a time-bound decision and interim protection against coercive recovery. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Paragraph 6.5 of the Supply Code was treated as the statutory forum for objecting to the impugned demand of Rs 2,47,571. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 22 DECEMBER 2021 FOR RS 2,47,571

The Court expressly declined to express any opinion on the merits. ¶ 1